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February 3, 2026

U.S. Citizenship and Immigration Services
California Service Center
P.O. Box 10140
Laguna Niguel, CA 92607-1010

RE: FORM I-140, IMMIGRANT PETITION FOR ALIEN WORKER

Petitioner: Vivek Kumar Mishra (Self-Petition)

Classification Sought: EB-1A (Alien of Extraordinary Ability)

Field of Extraordinary Ability: Applied Artificial Intelligence and Machine Learning

Dear USCIS Adjudicating Officer:

I, Vivek Kumar Mishra, respectfully submit this Form I-140 petition seeking classification as an Alien of Extraordinary Ability pursuant to Section 203(b)(1)(A) of the Immigration and Nationality Act, 8 U.S.C. § 1153(b)(1)(A), and 8 C.F.R. § 204.5(h).

I. STATEMENT OF ELIGIBILITY

I possess extraordinary ability in the field of Applied Artificial Intelligence and Machine Learning, demonstrated through sustained national and international acclaim. My contributions have achieved recognition at the highest levels:

- **Federal Government Recognition:** The U.S. Department of Transportation has permanently archived two of my machine learning methodologies in the National Transportation Library (ROSA P Records dot/61210 and dot/59030)—the official federal repository for authoritative transportation research
- **Cross-State Government Adoption:** The Florida Department of Transportation adopted my methodologies in federally-funded infrastructure research programs, demonstrating transferability and governmental reliance
- **Systemically Important Financial Institution:** As a founding engineer at JPMorgan Chase & Co., I designed backend architecture for the Chase Shopping Hub platform serving 80+ million cardmembers, processing 5+ million monthly requests with 99.9% reliability
- **Premier Conference Peer Review:** Selected as reviewer for NeurIPS 2025 and ICLR 2025—the highest-tier machine learning conferences globally where only established researchers are invited to evaluate cutting-edge research

- **IEEE Senior Member:** Elevated to IEEE Senior Member grade based on ten years of professional experience and five years of significant performance as evaluated by three existing Senior Members/Fellows—a distinction held by only 8% of IEEE’s 460,000+ members

II. CRITERIA MET

I have satisfied **six of the ten regulatory criteria** specified in 8 C.F.R. § 204.5(h)(3)—double the regulatory minimum of three:

1. **Original Contributions of Major Significance** [§ 204.5(h)(3)(v)]
2. **Scholarly Articles in Professional Publications** [§ 204.5(h)(3)(vi)]
3. **Judging the Work of Others** [§ 204.5(h)(3)(iv)]
4. **Membership Requiring Outstanding Achievements** [§ 204.5(h)(3)(ii)]
5. **Published Material About the Alien** [§ 204.5(h)(3)(iii)]
6. **Leading or Critical Role** [§ 204.5(h)(3)(viii)]

Detailed evidence for each criterion is provided in the accompanying petition package.

III. PATTERN OF SUSTAINED ACCLAIM

My achievements span eleven years and originate from independent institutions across government, industry, and academia:

- **2014–2018:** Employed at Cognizant Technology Solutions (Fortune 200 company)
- **2018–2020:** Member of Technical Staff at Oracle Financial Services (commanded salary 83% above market average)
- **2020–2021:** Research Assistant at California State University, Long Beach—recruited by Civil Engineering department for specialized AI/ML expertise; research archived by U.S. DOT
- **2021–Present:** Critical role at JPMorgan Chase & Co. developing mission-critical AI-integrated systems
- **2024–2025:** IEEE Senior Member elevation, NeurIPS/ICLR reviewer invitations, curriculum adoption at government institutions, expanding recognition as expert source by major technical publications

This progression demonstrates continuous validation by unrelated entities, not fleeting recognition.

IV. PRESERVATION OF LEGAL ARGUMENT

I respectfully preserve the following argument for the record:

The statutory text at 8 U.S.C. § 1153(b)(1)(A) and implementing regulation at 8 C.F.R. § 204.5(h)(3) establish that satisfaction of three criteria constitutes sufficient evidence of extraordinary ability. Having met six criteria, I satisfy the regulatory standard.

In *Mukherji v. Miller*, Case No. 4:24-cv-03170 (D. Neb. Jan. 28, 2026), the U.S. District Court for the District of Nebraska ruled that USCIS’s “final merits determination” framework—which permits denial even after criteria are met—was **unlawfully adopted** without Administrative Procedure Act (APA) rulemaking. The court found this practice arbitrary, capricious, and contrary to law, vacating the denial and ordering approval.

While *Mukherji* is not binding in the Third Circuit, it constitutes highly persuasive authority on the APA violation inherent in applying extra-regulatory standards through the final merits determination. The court’s analysis applies to all circuits as a matter of federal administrative law.

I respectfully request that USCIS approve this petition based on satisfaction of the regulatory criteria, consistent with the statute, regulations, and recent federal court precedent. A comprehensive legal analysis is included in the accompanying petition.

V. NATIONAL BENEFIT

My ongoing work directly advances U.S. national interests in artificial intelligence development, financial infrastructure stability, and transportation system optimization:

- Supporting systemically important financial institution operations critical to national economic stability
- Contributing to federal transportation research priorities including equity-focused infrastructure planning
- Advancing AI safety and reliability through peer review of cutting-edge research at premier international conferences
- Developing production AI systems serving tens of millions of Americans

Executive Order 14110 on Safe, Secure, and Trustworthy Artificial Intelligence identifies AI development as critical to national security and economic competitiveness. My demonstrated capacity to develop production AI systems at scale, conduct government-adopted research, and evaluate frontier AI research directly serves these national priorities.

VI. SUPPORTING DOCUMENTATION

This petition includes:

- Form I-140 with required filing fee

- Comprehensive petition document with detailed evidence for each criterion
- Letters of recommendation from distinguished professionals
- Scholarly publications and citation records
- Federal government archival documentation
- Conference reviewer credentials and panel service documentation
- IEEE Senior Member elevation documentation
- Media coverage and expert recognition evidence
- Employment verification and impact documentation
- Detailed resume

VII. CONCLUSION

I have demonstrated extraordinary ability through a pattern of sustained national acclaim validated by the U.S. government (federal archival and state adoption), Fortune 500 industry leaders (JP-Morgan Chase critical role), premier academic institutions (curriculum adoption), and international peer recognition (NeurIPS/ICLR reviewer credentials).

Having met six regulatory criteria—double the statutory minimum—I respectfully request approval of this petition.

Thank you for your consideration of this application.

Respectfully submitted,

Vivek Kumar Mishra
Petitioner

Enclosures:

- Form I-140
- Filing Fee
- Comprehensive Petition with Evidence
- Supporting Documentation